

25PR01516 Matter of The Dennis A. Ricci Revocable Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-07

Motion: Petition For: 1. Order For Accounting; 2. Suspension, Removal, And Replacement Of Trustee; 3. Order To Quiet Title And For Recovery Of Trust And Estate Property Under Probate Code Section 850; 4. Invalidation Of Purported Trust Instrument – Undue Influence; 5. Invalidation Of Purported Trust Instrument – Fraud; 6. Reformation – Mistake Of Fact; 7. Order For Damages And Attorney's Fees Under Welfare & Institutions Code Section 15610.30 And Probate Code Section 859; 8. Unjust Enrichment / Restitution; 9. Constructive Trust/Blocked Account; 10. Order Preventing Respondent From Using Trust Assets To Defend This Action; And 11. Order To Send Interested Parties To Mediation Under Probate Code Section 17206

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Tentative Ruling: Per the recently filed statements of issues, the parties have met and conferred and completed some discovery. The revelations of the recently completed discovery may resolve certain barriers to settlement or otherwise change the petitioner's position. Counsel for the parties are positive about the prospect of informal resolution. Each party suggests continuing the matter. Therefore, the matter is CONTINUED to November 20, 2026 at 9:30 a.m. in Department 63. The parties are ORDERED to comply with local rules 6.2.F.2 and 6.2.F.3 in advance of the continued hearing. The petitioner is also ORDERED to provide a copy of the trust, as set forth below, and to correct the notice problem indicated below.

For every petition filed pursuant to Division 9 of the Probate Code ("Prob C,") the petition must include a copy of the entire trust instrument(s) relevant to the action, including all amendments thereto, and all attachments, schedules, and exhibits. Sonoma County Local Rule 6.8(A). No trust instrument is attached to the petition, despite indication in the petition that the petitioner has previously received a copy of the trust. At least seven (7) court days in advance of the continued hearing, the petitioner must file, by verified supplement, a copy of the entire trust instrument(s) relevant to the action, including all amendments thereto, and all attachments, schedules, and exhibits.

Per paragraphs 19 and 49 of the petition, some of the assets at issue in the Prob C §850 aspects of this petition are financial accounts. However, the entity(ies) in possession of the accounts (the financial institutions) have not been served as required by Prob C §851(a)(2). The petitioner should note that Prob C §851(a) requires service of the notice of hearing and a copy of the petition in the manner provided by California Code of Civil Procedure §413.10 et seq. (i.e. in the manner of a summons.)

For ease of reference, the Court also reiterates the following rulings from April 24, 2026:

The Court finds that the petitioner's standing to seek a trust accounting and to seek removal and replacement of the trustee is dependent on his success in his efforts to invalidate or reform the trust. Therefore, the requests for an accounting and for removal and replacement of the trustee will trail the outcome of the invalidation or reformation claims. Prob C §§24(c) and 48. In probate proceedings, an interested person is a person that has an interest of some sort that may be impaired, defeated, or benefited by the proceeding at issue. *Lickter v. Lickter* (2010) 189 Cal.App.4th 712, 728.

The Court does not find any sufficient basis to conclude that trust property or the interests of a beneficiary may suffer loss or injury pending a decision on the petition for removal of the trustee at this time and does not order suspension. Prob C §15642(e).

Any request to prevent the respondent from using trust and estate assets to defend this action must be by noticed motion. Any request for a Breslin mediation order must be by noticed motion. Any request for allocation of attorney fees must be made by noticed motion and include the authority for an award of costs and fees, as well as support for the amount requested. With respect to costs, any person entitled to recovery of costs may seek costs by a memorandum of costs filed with the court and subject to a motion to tax, at the conclusion of the matter.